

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS

PLAINTIFF

vs.

Case No. _____

Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran y Fitzwilliam III

DEFENDANT

(First, Middle and Last Name)

ORDER TO SEAL A MISDEMEANOR CONVICTION
FOR DRIVING OR BOATING WHILE INTOXICATED

Before the Court is the Petition of the Defendant to seal his/her record. The Court finds and orders as follows:

1. The Defendant was arrested on the _____ day of _____, _____, and charged with the offense(s) of Driving or Boating While Intoxicated in violation of Ark. Code Ann. §5-65-103.
2. The Defendant either pled guilty or was found guilty of the offense(s) listed above.
3. The Defendant has completed his or her sentence for this offense.
4. Defendant has paid all court costs unless payment has been excused by the Court.
5. Defendant has paid all Court ordered Restitution, if any.
6. Defendant has paid all driver's license suspension reinstatement fees and completed all driver's license reinstatement requirements if Defendant's driver's license was suspended as a result of this plea or conviction.
7. Pursuant to Ark. Code Ann. §5-65-111(b)(1) and/or (c)(1), it has been more than ten (10) years since Defendant's first conviction for Driving or Boating While Intoxicated.

8. ☐ Defendant has no pending felony charges in any state or federal court, or
☐ Defendant has one or more pending felony charges in state or federal court and the status of those charges is/are as follows:
- _____
- _____

9. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (Ark. Code Ann. §12-12-901, et seq)

10. Defendant has been rehabilitated.

11. There is no clear and convincing evidence as to why the Defendant's Petition should not be granted.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to seal the above referenced misdemeanor conviction(s) pursuant to A.C.A. §16-90-1405 should be, and hereby is GRANTED.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information, the Administrative Office of the Courts, the prosecuting and/or city attorney, the District Court Clerk, if applicable, and the arresting agency. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION
OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS**

Race _____

Arrest Tracking Number _____

Sex _____

SID No. _____

DOB _____

FBI No. (If known) _____